



LEGAL REPRESENTATION AGREEMENT – FLAT FEE

1. Parties to This Agreement:

- a. **The Firm:** THE VARELA LAW FIRM, PLLC, located at 8554 Katy Fwy, Suite 340, Houston, TX 77024.
- b. **The Client:** Peggy Davis, who will be the person receiving the legal services described in this Agreement.

2. Purpose

The Firm will represent the Client in the following matter: Last Will and Testament.

Representation is limited to the services necessary to complete the above-described matter before the relevant court or government agency.

Any appeal, motion, or additional proceeding not expressly included will require a new contract or additional fees.

3. Limited Scope of Representation:

The Firm's representation is strictly limited to the matter described in this Agreement. The Firm does not represent the Client in other related or derivative matters, such as appeals, collateral proceedings, or separate administrative actions, unless a new written contract is executed.

The Client understands that he or she is a **client of the Firm, not of any individual attorney**. Multiple attorneys, paralegals, or legal assistants may work on the case and may be assigned or reassigned at the Firm's discretion. The Firm will keep the Client reasonably informed of such changes.

4. Fees

The Client agrees to pay the Firm a **flat fee of \$** 1,500, of which \$ 1,500 shall be paid at the time of signing.

This initial payment is a **non-refundable earned fee upon receipt** covering administrative setup, conflict checks, entry into the case-management system, file opening, preliminary review of facts, initial legal and factual analysis, applicable law and precedent research, early strategic considerations, and the Firm's commitment of resources and availability.

Although this is a flat fee agreement, the Firm may, at its discretion, convert the case to hourly billing if unexpected court or agency requirements substantially increase the scope of work. The Firm will notify the Client before such conversion takes effect.

5. Revocation of Payment Plan. If the Firm must complete the required work before the Client has fully paid the total fees, any previously offered payment plan will be automatically revoked. The Client agrees to pay the remaining balance no later than sixty (60) days before any final hearing or trial or equivalent event scheduled by a court or agency.

If the hearing or event is scheduled with less than sixty (60) days' notice, the Client must pay the balance within twenty-four (24) hours of notification.

Failure to comply authorizes the Firm to suspend work, decline to appear, or withdraw from representation under applicable professional-conduct rules.

6. Individual Hearing and Advance Payment (For Immigration Cases)

- In immigration cases where the Immigration Court schedules a **Hearing on the Merits (Individual)**, the

Client acknowledges and agrees that full payment of all fees must be completed **no later than sixty (60) days before** the scheduled hearing date, regardless of when the date was set or later changed by the Court.

- This requirement ensures the Firm has adequate time and resources to prepare. If full payment is not received sixty (60) days before any rescheduled hearing, the Firm will be unable to continue representation.
- If payment is not completed, the Firm may provide written notice of its intent to withdraw and, if necessary, request authorization from the Court, in compliance with the **State Bar of Texas** and the **EOIR (Executive Office for Immigration Review) Regulations**.
- Before withdrawing, the Firm will give reasonable written notice and take practical steps to avoid prejudice.
- The Client understands that, even if the Court schedules the hearing months or years in advance, it remains the Client's responsibility to complete all payments within the required timeframe according to the payment Plan agreed upon. Failure to do so constitutes **just cause for termination of representation**.

7. Late Payments. If the Client fails to pay any installment or balance within the month in which it is due, a fifty-dollar (\$50) late fee will be added to the balance. If two (2) consecutive payments are missed, the Firm may suspend services until the account is current.

If the Client has unpaid balances, the Firm may retain any documents related to the case and suspend work on the next stage of the process until payment is made in full.

8. Refunds and Cancellations. At the Firm's sole discretion, a partial refund may be authorized only if the Client cancels within twenty-four (24) hours of signing.

- In every case, the Firm will retain at least **10% of the total flat fee or \$350 (whichever is greater)** as a minimum earned fee.

9. No Refund for Work Already Performed. Fees are earned as work is performed. If the Client cancels, there will be no refund for services already rendered, analysis completed, or time expended before cancellation.

10. Fee Adjustment for Material Change in Circumstances

If unforeseen circumstances substantially increase the required work, such as new motions, third-party intervention, appeals, or additional requirements by courts or agencies, the Firm may review and reasonably adjust the flat fee. The adjustment must be accepted by the Client for representation to continue.

11. Third-Party Costs and Expenses. In the course of representation, it may be necessary to incur expenses that are not included in the flat fee, such as filing fees, certified mail, courier services, or translations.

- The Firm may incur reasonable and customary expenses necessary to advance the Client's case without prior approval for minor or routine amounts.
- The Client understands that any services provided by outside professionals—such as mediators, expert witnesses, interpreters, or similar third parties—are independent from the Firm. The Client will be responsible for paying such third-party providers directly and in full. The Firm will not act as an intermediary or assume financial responsibility for the payment of those providers.

12. Client Responsibilities

The Client agrees to:

- (a) Provide information and documents promptly;
- (b) Attend hearings, trials, or depositions as required, even if notice is short;
- (c) Immediately notify the Firm of any change of address, phone, or email;
- (d) Maintain regular communication and respond promptly to the Firm; and
- (e) Pay all fees, costs, and charges on time.

Failure to comply with these obligations may result in suspension or termination of representation. The Client's obligation to pay fees and costs is not contingent upon the outcome of the case.

13. Application of Payments Between Cases

If the Client retains the Firm for more than one matter, the Client agrees that the Firm may, at its sole discretion and without prior notice, **apply any payments received to the case or account with the oldest unpaid balance**, in order to maintain accounts current and prevent delinquency.

14. Confidentiality. The Firm is obligated to maintain the confidentiality of all information provided by the Client. If a third party pays any portion of the Client's fees, the Firm may not disclose confidential information about the Client's case to that third party without the Client's prior authorization, other than for administrative or billing matters only.

15. Termination. Either the Client or the Firm may terminate this Agreement at any time, with or without cause, by providing notice to the other. The Firm's right to withdraw is subject to professional-conduct rules. If terminated, the Client remains responsible for all fees earned and costs incurred up to the date of termination. A **minimum cancellation fee of \$350** will apply to cover initial administrative costs.

16. Limitation of Liability and No Guarantees. The Client understands that the Firm will perform its work to the best of its ability, but cannot guarantee any specific result. All statements from our staff are merely opinions.

17. Venue and Governing Law. This Agreement shall be interpreted and enforced under the laws of the State of Texas, and any dispute shall be resolved exclusively in Harris County, Texas.

18. State Bar Notice. The Texas Government Code requires notice that the State Bar of Texas investigates professional misconduct committed by Texas attorneys. Although not every complaint or dispute involves professional misconduct, information is available by calling (800) 932-1900.

Signatures: Signed and agreed on this date: 5/18/2026

Client Signature

Attorney Signature, Mario Varela

Client Information

Name: Peggy Davis

Address: _____

Phone: _____

Email: _____

Alternate Contact (if Client cannot be reached)

Name: Petra Melendez

Address: _____

Phone: 214-560-8127

Email: petra@cartaspro.com

Relationship to Client: _____

Contract Prepared By: AL